

25NWLC50241 25NWLC50241

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-07-30

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Case Number: 25NWLC50241 Hearing Date: July 30, 2026 Dept: Y

25NWLC50241: FINANCIAL PARTNERS CREDIT UNION, A CALIFORNIA CORPORATION vs FRANCISCO FERNANDEZ

Tentative Ruling:

The Court has read and reviewed the moving papers filed by Plaintiff Financial Partners Credit Union ("Plaintiff") in support of its Motion for Judgment on the Pleadings ("Motion"), including the supporting declaration of counsel.

Plaintiff's Motion was initially set for hearing on June 25, 2026. At that hearing, the Court found that the attorney declaration submitted by Plaintiff did not meet the requirements set forth in Code of Civil Procedure section 439. The Court granted a continuance to cure the defect in the meet and confer process.

On July 23, 2026, Plaintiff filed a Supplemental Declaration Pursuant to CCP section 439. On July 24, 2026, Defendant filed a declaration confirming the sufficiency of the meet and confer process and that no opposition would be submitted by Defendant. The Court now finds that Plaintiff has met the requirement of Code of Civil Procedure section 439 and rules as follows:

Pursuant to California Evidence Code sections 452 and 453, the Court GRANTS Plaintiff's request for the Court to take judicial notice of:

Plaintiff's Complaint filed on September 3, 2025;

The Court's Amended Order Deeming the Truth of Matters Specified in Request for Admission entered on May 19, 2026; and

Plaintiff's Amended Motion to Deem Matters Admitted, and the Requests for Admission submitted in support of that motion, filed on March 30, 2026.

The Court finds the Request for Admissions admitted cannot reasonably be controverted at this stage of the proceedings. The Request for Admissions are tantamount to Defendant admitting the causes of action alleged by Plaintiff.

Plaintiff's Motion for Judgment on the Pleadings is GRANTED as the complaint states facts sufficient to constitute a cause of action and the Answer in conjunction with the admissions deemed admitted does not state facts sufficient to constitute a defense.

The Court orders Judgment in favor of Plaintiff and against Defendant Francisco Fernandez aka Francisco Javier Fernandez aka Frank Javier Fernandez aka Frank A Fernandez for the principal sum of \$10,037.92 plus interest in the amount of \$2,880.64, plus attorney's fees in the amount of \$691.13, and costs in the amount of \$312.98, for a total Judgment of \$13,922.67.

The Proposed Order and Judgment will be signed by the Court.

Plaintiff to give notice.